

amended pleading shall be filed within 30 days of receipt of notice of this order.

10. 9:00 AM CASE NUMBER: L24-04469

CASE NAME: CAPITAL ONE, N.A. VS. MICHAEL CHONG

***HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT (CONTINUED FROM 11.13.2025)**

FILED BY:

TENTATIVE RULING:

This matter is continued from a prior hearing. Before the prior hearing, the Court tentatively denied defendant's motion to set aside default. (That tentative ruling, dated November 12, 2025, is adopted by reference.) At oral argument, defendant raised additional authority indicating that the court had equitable discretion to set aside the default even in the absence of compliance with other statutory limitations. (*Rappleyea v. Campbell* (1984) 8 Cal.4th 975.) By order dated November 14, 2025, the court continued the hearing in order to give plaintiff an opportunity to address the *Rappleyea* case. (That order also is incorporated by reference. In supplemental briefing, plaintiff does not dispute that under *Rappleyea*, the Court has discretion to grant the motion under equitable principles. It does, however, dispute that the equitable factors exist in this case.

Considering the equitable factors, the Court finds that defendant had agreed to a settlement of the case, and had made payments under its terms, although he had not signed and executed the agreement. The correspondence, however, clearly stated that there was no agreement, even if payments were made, unless the stipulation was signed. In addition, defendant had served an answer to the complaint but had not filed it. He contends that he was "encouraged" by the published Local Rules to file his documents electronically, when in fact there were delays in processing that resulted in him not being advised that his General Denial was rejected until well after his default had been entered. But defendant did not submit his General Denial for filing until December 12, 2024, while the default was entered on December 6th. The fact that there was delay in rejecting the General Denial is not the reason he was in default. Nor does it explain all but 51 days of his delay in moving to set aside the default.

The motion to set aside the default is denied.

11. 9:00 AM CASE NUMBER: MS5031

CASE NAME: PETITION OF: PARAQUAT CASES

HEARING IN RE: APPLICATION TO APPEAR PRO HAC VICE OF GENNA LAUREN PORTNER

FILED BY: SYNGENTA AG

TENTATIVE RULING:

Granted, subject to submission of proof of service on the State Bar.

12. 9:00 AM CASE NUMBER: MSC16-01118

CASE NAME: YUE VS. TRIGMAX SOLUTIONS

***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSE TO SPECIAL INTERROGATORIES**

FILED BY: YUE, DONGXIAO

TENTATIVE RULING:

Plaintiff Dongxiao Yue moves that defendant Trigmax Solutions LLC be compelled to provide responses without objection to Special Interrogatories 1-16 and Requests for Production of Documents 1-14. No opposition has been filed.

Plaintiff establishes that the requests were served, and Trigmax did not provide a timely response. Plaintiff followed up with an email request to counsel for Trigmax, but he expressly declined to provide a response.

The basis for the non-response arises from the previous appeal. Another judge previously assigned to this case granted a motion to dismiss for failure to bring the case to trial within 5 years. Plaintiff appealed, and the Court of Appeal reversed. Trigmax's counsel maintained that because discovery had been closed before the initial trial date, the reversal and issuance of a remittitur did not reopen discovery. Thus, the discovery was improper until the trial court issued an order reopening discovery. The parties debated this issue in their electronic mail, each relying on *Beverly Hospital v. Superior Ct.* (1993) 19 Cal.App.4th 1289, 1291, in which the court held that "a mistrial, new trial or reversal of the judgment on appeal automatically restarts the time limitations on discovery." While other Courts of Appeal disagreed, the Supreme Court concluded that *Beverly Hospital* is correct in *Fairmont Ins. Co. v. Superior Court* (2000) 22 Cal.4th 245, 247, reversing an appellate court conclusion that no additional discovery for the purposes of the new trial is permitted without leave of the trial court. In this Court's view, this means that leave of court or a "reopening" of discovery was not required to serve further discovery.

The motion to compel further answers is granted. Defendant Trigmax Solutions is to provide answers, without objection, within 30 days of notice of this ruling.

Plaintiff's request for sanctions (the \$60 filing fee), is granted.

13. 9:00 AM CASE NUMBER: MSC19-02043
CASE NAME: GARAVENTA VS AZARI
***HEARING ON MOTION IN RE: ORDER FOR PAYMENT OF EXPENSES**
FILED BY: GARAVENTA, SILVIO
TENTATIVE RULING:

Before the Court is a motion by plaintiff Silvio Garaventa, Jr., for payment of expenses, including attorneys' fees, pursuant to Corporations Code section 2000. For the reasons set forth, the hearing on the motion is **continued to 9:00 a.m. on February 19, 2026**, for submission of supplemental papers, as set forth below.

Background

Plaintiff Silvio Garaventa filed a complaint initiating this action in 2019. The action arises out of business disputes between Garaventa and defendant Mehrzad Azari. The operative first amended complaint filed November 4, 2019 alleges that at that time, Garaventa and Azari each owned 50 percent of defendant Pine Hollow Enterprises, a corporation, and they were also each a director of Pine Hollow. (FAC ¶¶ 1, 2.) Garaventa alleges he and Azari also each held 50 percent membership